

OREGON STATE HOSPITAL

POLICY

SECTION 5: Human Resource Management **POLICY: 5.020**

SUBJECT: Staff and Adult in Custody
Worker Relationships

POINT PERSON: Chief Financial Officer/ Chief
Operations Officer

APPROVED: Dolores Matteucci **DATE: APRIL 6, 2023**
Superintendent

SELECT ONE: ☐ New policy ☒ Minor/technical revision of
existing policy
☐ Reaffirmation of existing policy ☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. This policy establishes boundaries regarding relationships between Oregon State Hospital (OSH) staff and adult in custody workers.
- B. This policy applies to all staff.

II. POLICY

- A. OSH staff must confine relationships with adult in custody workers to activities which are duly sanctioned as an integral part of assigned duties or responsibilities and which are consistent with professional conduct. On-duty or off-duty contact which is not related to work is prohibited, except as defined by this policy and procedures or other regulations.
- B. Staff may not knowingly engage in any personal or business transaction with any adult in custody worker or with an adult in custody worker's family or friends, except as authorized in advance by the staff member's supervisor or designee, the staff member's position description, or as allowed by this policy.
- C. Relations between staff and an adult in custody is prohibited per Oregon Revised Statute (ORS) 163.452 and ORS 163.454.
- D. In the event disciplinary action is considered necessary in response to a violation of this policy, it will be carried out in accordance with provisions of this policy, the applicable collective bargaining agreements, and other regulations as needed.

- E. Oregon State Hospital (OSH) follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- F. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Adult(s) in custody" is as defined in OSH policy 5.016, "Adults in Custody Workforce." Adults in custody means any person working at OSH through the Adult in Custody Work Program under the supervision of the Department of Corrections (DOC) and who is not on parole, post-prison supervision, or probation status. Adults in custody in this policy does not refer to Oregon State Hospital patients.
- B. "Adult in Custody Program Coordinator" means the OSH manager assigned to serve as the Adult in Custody Work Program liaison between OSH and DOC.
- C. "Personal or business transaction" for the purpose of this policy includes, but is not limited to, giving or accepting personal gifts, favors, or special considerations of any kind.
- D. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

IV. PROCEDURES

Procedures A Staff Response to Staff and Adult in Custody Worker Relationships

V. ATTACHMENTS

VI. RELATED OSH POLICIES AND PROTOCOLS

- 1.003 Incident Reporting
- 5.014 Conflict of Interest
- 5.016 Adult in Custody Workforce
- 5.018 Volunteers
- 7.008 Abuse or Mistreatment Allegation Reporting
- 9.002 Training for Staff

VII. REFERENCES

Oregon Revised Statute §§ 163.452 – 163.454.

Oregon Revised Statute § 179.915.

Oregon Revised Statute § 244.

Shared Services. *Conflict of interest*, DHS/OHA 060-002. Author.